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No. 97-82

IN THE

Supreme Court of the United States

OCTOBER TERM, 1997

LANCE E. LINDBLOM,

Petitioner,

v.

FEDERAL BUREAU OF INVESTIGATION,

Respondent.

On Petition for a Writ of Certiorari to the United States Court of Appeals for the District of Columbia Circuit

PETITIONER'S REPLY TO BRIEF IN OPPOSITION

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ARGUMENT

In opposing review respondent attempts to support the decision below by ignoring traditional rules of statutory construction and proposing a strained reading of § (e)(7) of the Privacy Act ("Act") which is unrealistic and contrary to Congress' intent. Respondent then argues against a proper construction of the Act by recasting the legitimate requirements of § (e)(7) into imaginary and unwarranted burdens. Finally, the FBI misconstrues both the facts and the reasoning of the Seventh Circuit's opposing precedent, *Becker v. I.R.S.*, 34 F.3d 398 (7th Cir. 1994).

1. As a preliminary matter, the government has misrepresented petitioner's position as allowing the maintenance of First Amendment information only if there is "an active or ongoing investigation." Brief for the Respondent In Opposition, 7 ("Opp. Cert. __"). That is not the case. What the Privacy Act does demand, as stated by Circuit Judge Tatel, is a "present, articulable use" for keeping this sensitive and constitutionally chilling information. Pet. App. 15a. It is precisely this showing that the FBI is unwilling and apparently unable to make.

According to the FBI, the requirements of § (e)(7) are satisfied as long as it can show that information describing an individual's First Amendment activities was pertinent when collected, no matter how long ago collected or how irrelevant to present concerns of national security. Though petitioner acknowledges that § (e) (7)'s concept of authorized law enforcement activity may not be limited to an active or ongoing investigation, he vigorously asserts that § (e)(7) requires an agency to show that keeping First Amendment-related information matters to the agency, and the country, *now*.

2. Respondent refuses to address any of the applicable rules of statutory construction. Nor does it address Congress' explicit language in the preamble of the Act which prohibits federal agencies from collecting or keeping information "in a man-

ner" that is contrary to the Act. This language makes clear that Congress was concerned with *how* agencies keep First Amendment information, as well as *how* they collect it. Pet. App. 16-17. This explicit proscription in the preamble is directly at odds with the appeals court's conclusion that § (e)(7) requires only that information be pertinent and not that *keeping* such information be pertinent.

Respondent argues only that the decision of the court of appeals did not render the definition of "maintain" superfluous, because § (e)(7) "makes clear that an agency's retention of those records is a continuing Privacy Act violation." Opp. Cert. 8-9. But, this is an unrealistic and implausible purpose for the language at issue. It requires Congress to have felt the need to inform federal agencies like the FBI that they must not keep information they unlawfully collected. To say the least, such a construction imputes a sorry lack of common sense to federal agencies. And to the extent that it does *not* impute such ignorance, the government's reading is entirely impractical in instructing agencies to do what they already must do. *See, e.g., Peters v. Hobby*, 349 U.S. 331, 348-49 (1955)(ordering expungement of Loyalty Review Board findings from federal employee's personnel records on showing that Board acted without jurisdiction).[1]

3. The government erroneously asserts that petitioner's approach would result in "severe" administrative burdens on law enforcement agencies by requiring agencies "continually to review" records for pertinence, and, as part of any such review, "to consult with all of [their] field offices and with other law enforcement and investigative agencies." Opp. Cert. 11.

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[1] Neither does the government's reliance on the Federal Records Act of 1950, 44 U.S.C. § 3101 *et seq.* (Opp. Cert. 8 n.5), provide support for its interpretation of § (e)(7). The Federal Records Act requires only that records be destroyed in compliance with regulations promulgated by the Archivist. *See* 44 U.S.C. § 3302. Nothing in the Federal Records Act requires the indefinite retention of information on Americans' First Amendment activities.

But petitioner does not seek "continual review" by federal agencies. To the contrary, there are a number of administratively convenient occasions when agencies can easily comply with their § (e)(7) duties. At the time of closing an investigation, for example, it would not be unduly burdensome to determine the need to keep information relating to First Amendment activities. Similarly, reviewing for pertinence when processing a Privacy Act request would be no undue burden. Under any such request, an agency is required by the Act to notify its local offices—at least to find out if files on the requester are held in any of them. In addition, the agency already must inspect any files on the requester in great detail in order to determine what materials it will release. Indeed, government submissions to the district court in this very case show that at least two agents reviewed petitioner's files in their entirety. [J.A. 59, 96] The government's assertion that the burden involved in doing a similar evaluation as to the pertinency of First Amendment information at the time of the request is consequently insupportable.

4. The government continues to rely on its "mosaic" theory. It argues that, due to the special needs present in intelligence operations, agencies like the FBI must be able to retain information even when they cannot show the current pertinence of the information. Opp. Cert. 10. This effectively means that the FBI must be permitted to forever retain *every single* intelligence file it compiles, even ones describing First Amendment activities, no matter how innocent the information, because the FBI can never be sure that the information will not prove valuable in the future.[2]

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[2] The government cites *C.I.A. v. Sims*, 471 U.S. 159 (1985) in support of this position. Opp. Cert. 10. But the case is of no relevance here. *Sims* is a FOIA case concerning whether to make publicly available, information concerning intelligence sources—information that the CIA was concerned might fall into the hands of foreign agents. There is nothing in the Court's opinion that provides meaningful support for the FBI's apparent practice of retaining any information it pleases—including information describing the First Amendment activities of U.S. citizens—regardless of how irrelevant to any present interests.

The FBI's own conduct, however, belies this assertion. For example, at issue in *Patterson by Patterson v. F.B.I.*, 893 F.2d 595 (3d Cir. 1990), was a name-retrievable file describing certain of appellant's First Amendment activities. The court indicated that the FBI had offered, as late as at oral argument, to expunge appellant's name from its records. *Id.* at 598 & n.5. Apparently, the FBI was quite able to make a determination that there was no need, *in the case of a particular person*, to continue to maintain a name-retrievable file.

Obviously, making such a determination did not impose a daunting substantive burden on the FBI. It is very hard indeed to see how making such an individualized determination regarding petitioner's records would be any harder. This is all petitioner would have the agency do as a condition of retaining information about his lawful and protected associational activities.

5. The government asserts that the decision in *MacArthur* does not conflict with *Becker v. I.R.S.*, 34 F.3d 398, 407-09 (7th Cir. 1994), because "the factual setting addressed [in *Becker*] is markedly different from that at issue here." Opp. Cert. 12. This is incorrect.

In the first place, the government attempts to distinguish *Becker* on the ground that the *Becker* court never "squarely address[ed] the question whether the files in question had *ever* been pertinent to an authorized law enforcement activity," (Opp. Cert. 12-13), while Lindblom has conceded the propriety of the collection of his record. But even a cursory reading of the *Becker* opinion reveals that the court resolved the point in issue on the basis that the Beckers' files were pertinent at the time of collection. As the reviewing court recounted, the district court had made such a finding. 34 F.3d at 408. And the *Becker* court's criticism of the district court was *not* with this finding, but rather with its inference that "maintenance"—*i.e.*, retention—of the files was *thereby* justified. *Id.* The court essentially reasoned that it doesn't follow from the assumed pertinence of the files at the time of collection that the retention of the files was justified.

Id. at 408-09.

In the second place, the government tries to distinguish *Becker* on the basis that the case did not involve counterintelligence operations while *MacArthur* does. Opp. Cert. 12. But if this makes a difference in the applicability of § (e)(7), then the *IRS* is obliged under § (e)(7) to independently justify the retention of properly collected records, but agencies (like the FBI) that are engaged in counterintelligence operations are not. It is clear, however, that this distinction cannot possibly be extracted from § (e)(7), a statute that is addressed quite simply to every agency that maintains a system of records.

In short, neither of the government's asserted distinctions between *MacArthur* and *Becker* does away with a clear circuit split on what § (e)(7) requires. The truth of the matter is this: the Seventh Circuit requires federal agencies to independently justify the retention of First Amendment information that they have properly collected, while the District of Columbia Circuit does not.

CONCLUSION

The petition for a writ of certiorari should be granted.

Respectfully submitted,

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